

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: February 11, 2013

TYPE OF DOCUMENT: (☐ ORDINANCE) (☐ RESOLUTION) (☒ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (☐ CHANGEORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (☐ APPLICATIONS/LICENSES/PERMITS)
(☐ APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☒ OTHER)

SPONSOR: (ORDINANCE OR RESOLUTION) N/A

EXACT WORDING FOR AGENDA: Preliminary Plat for The Bluffs, 9th Filing, a tract of land situated in a portion the East Half of the East Half (E½E½) of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter (SW¼ SW¼ NW¼) of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming (Annexation in process) (located approximately 1500-feet north of the intersection of Converse Avenue and Ogden Road).

(1% Sales Tax Funding/Years)	N/A
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(Other Funding _____)

CONTACT PERSON: Jim Flesher PHONE: 637-6286 DEPT: Development Office

OTHER CITY DEPTS AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	()	()	(<u>X</u>)
Were Bids called for?	()	()	(<u>X</u>)
Affected parties notified of Council procedure and dates?	(<u>X</u>)	()	()
Has bond, insurance or other security been arranged?	()	()	(<u>X</u>)
Have legal descriptions been checked?	(<u>X</u>)	()	()

Agenda Item approved / reviewed by :

Risk Mgr () City Attorney () Dept. Head (X)

General Comments: The Cheyenne Planning Commission recommended denial of the above described Preliminary Plat by a vote of 2 to 1, with Mr. Woods voting no, at their meeting on February 4, 2013. See the attached Staff Report for more definitive information.

Submitted by: Brandon Cammarata Title: Planning & Dev Dir. Date: February 6, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

City Clerk's Office

Engineering Tech Branch

Development Office

STAFF REPORT

Bluffs 9th Filing **Summation**

Preliminary Plat Process

CASE NUMBER: Pre.Plat-12-00010

FILE CODE: TBA-P

PREPARED BY: Jim Flesher

MEETING DATES: **Planning Commission:** January 7, 2013 (postponed to February 4, 2013)
City Council: February 11, 2013 (to be referred to Public Service Committee's February 20, 2013 meeting)

Required documents submittal:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Preliminary Plat Map
- Drainage Worksheet
- Transportation Worksheet
- Transportation Network Plan
- Open Space Worksheet
- Environmental Impact Assessment

STAFF REPORT UPDATE (2/5/13): At its regular meeting Monday, February 4, 2013, the City of Cheyenne Planning Commission recommended denial of the Zone Change from A-1 (County) to MR-2, Medium-Density Residential ("Developing") by a vote of 2 to 1. The recommendation was made pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC, based on the issues relating to exclusion of the stormwater detention pond from the project, access from Converse to Ogden, pedestrian connectivity from the subdivision to Anderson Elementary School, the large block size, and issues relating to the open space requirement.

STAFF REPORT

Bluffs 9th Filing

Preliminary Plat Process

CASE NUMBER: Pre.Plat-12-00010 **FILE CODE:** TBA-P

PREPARED BY: Jim Flesher

PRE-APPLICATION MEETINGS: None

SUBMITTED: December 3, 2012

OWNER/APPLICANT: United Western Corporation c/o Frank Cole 634-4577
2220 Dell Range Blvd, Suite 200
Cheyenne, WY 82009-4960

AGENT: Steil Surveying Services c/o Casey Palma 634-7273
PO Box 2073
Cheyenne, WY 82003

PROJECT: Bluffs 9th Filing **WORK DESCRIPTION:** Preliminary Plat

LOCATION:

1) Legal Description: A portion of the East ½ of the East ½ of Section 20, and a portion of the Southwest ¼ of the Southwest ¼ of the Northwest ¼ of Section 21, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming (annexation in process)

2) General Location: Approximately 1,500 feet north of the intersection of Converse and Ogden

3) Address: TBD

SIZE: Total Site: 8.84 acres
Right-of-way: 1.4 acres
Open Space: 0.44 acres (19,272 square feet)

CURRENT ZONING: A-1 Agriculture (County)

PROPOSED ZONING: MR-2, Medium-Density Residential (“Developing”) (zoning in process)

EXISTING LAND USE: Vacant land

PROPOSED LAND USE: Residential

EXPEDITED REVIEW: Not requested

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant	A-1	County
South	Single-family homes, Detention pond	MR-1, P	City
East	Single-family homes	MR-2	City
West	Vacant	A-1	County

PROJECT DATA

The subject property (Figure 1) is 8.8 acres of a 66-acre area owned by the applicant (either with family members or through a corporation or partnership). The proposed plat contains 28 buildable lots. The lots are larger than the adjacent Century West Fourth Filing, which is all single-family residential west of Point Bluff.

The proposed MR-2 zoning allows single-family detached dwellings with a minimum lot size of 6,000 square feet, most of the proposed lots are over 9,000 square feet. 28 single family lots are proposed.

The plat proposes to utilize a city maintained stormwater facility south of the site and a stormwater facility east of the site recently developed in the County without City approval or review. The proposal terminates Apache Street and Pattison Avenue into a cul-de-sac and proposes no access onto Converse Avenue.

The application proposes dedicating narrow strips of land along Converse Avenue and Ogden Road to be developed and maintained by the City as open space.

An annexation and zone change from agricultural zoning to Medium Density Residential Developing (MR-2) zoning are being processed concurrently.

PLAT ANALYSIS SUMMARY

Based on the review of City policies and standards discussed in this report, staff recommends denial of this plat and that a plat covering the remainder of the landowner's holding in the area be submitted in order to address the numerous issues and questions associated with this proposal.

The primary regulatory and policy issues with this plat relate to the park and open space proposal, transportation network issues caused by discontinuing street systems and questions relating to developing stormwater facilities in the County without City review or approval and using those facilities to serve City developments.

The proposal claims exceptions from the park space requirement by way of claiming a City owned detention pond is usable for park space. In general the existing pond is not used for park or recreation space and does not qualify this subdivision for an exception.

The application proposes dedicating open space to the City, for the City to develop and maintain. However, the proposal does not appear to meet all the necessary criteria for being counted as open space or for the city to accept the dedication. The proposal is a 20' strip of land along Converse Avenue and a 10' strip of land along Ogden Road.

The primary concern with the transportation network system is that the proposal precludes any street access and four way intersection on Converse Avenue. This is a significant underutilization of the street and precludes any connection between neighborhoods on the east and west side of Converse.

During the summer of 2012 the landowner developed a 3+ acre stormwater detention pond in the County immediately adjacent to this subdivision. The pond was developed without city review or approval. Attempts to meet with the applicant to discuss these matters were unsuccessful as the applicant was not able to meet.

PLAT ANALYSIS

Review of a preliminary plat is organized by analysis of the review criteria described in Preliminary Plat Review Criteria outlined in Article 2, Section 2.1.2d. The purpose of these review criteria is to provide a consistent review and discussion for preliminary plat applications.

1 ||Policies | Physical Patterns | Comprehensive Plan - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

Generally the proposal is consistent is consistent with PlanCheyenne in terms of land uses with the residential proposed and the fact that the development is with the urban services boundary and should be able to be effectively served.

However, three primary concerns are raised by reviewing PlanCheyenne. Those questions relate to the transportation network system, parks and open space and fiscal responsibility of the City.

Relating to the transportation network system, PlanCheyenne lays out a basic road network with a collector type street bisecting Section 20, west of Converse Avenue that will connect to the east with a four-way intersection on Converse Avenue at or near this location. The last remaining location for that four-way intersection is along the north boundary of this proposal. The vacant property to the north has already dedicated half of the street width in anticipation of this proposal submitting the same. The omission of any right-of-way along the north side of this plat is a significant deviation from the transportation master plan.

Below (Figure 3) is an excerpt from the PlanCheyenne future land use map. The project area is identified with a star. The wide hatch on the project area designates mixed use commercial emphasis (MU-C) which transitions to the north into mixed use residential emphasis (MU-R). The dashed streets crossing the larger area described collector streets in the master transportation plan.

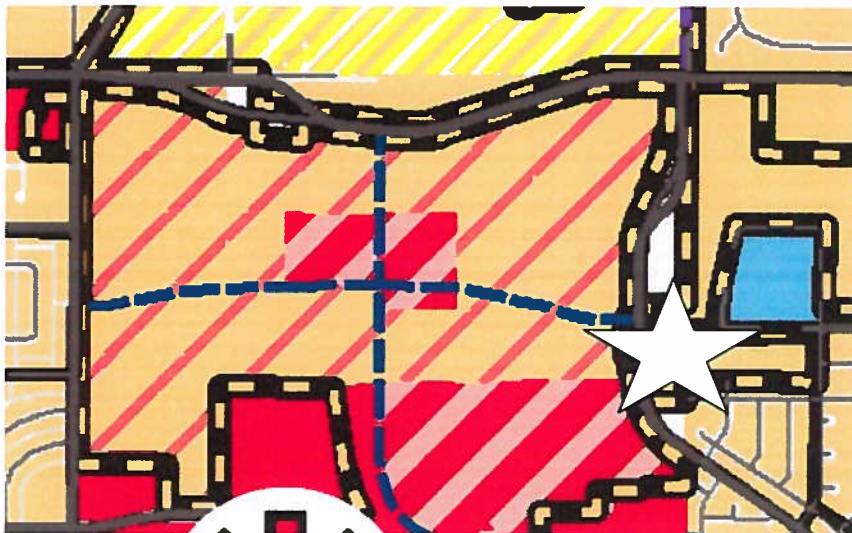


Figure 3: PlanCheyenne future land use map illustrating collector streets with dashed lines.

The lack of open space systems in the two square miles from Ridge Road to Powder House Road are not consistent with what the community has expressed in planning documents for the past 20 years which is that neighborhoods should have parks and open space.

Relating to fiscal responsibility, the community has invested millions of dollars in developing a functional street network in this area. The development of Storey Boulevard and Converse Avenue represent significant investments for the community. The development proposals along Converse Avenue underutilizes and potentially degrades this investment with few access points; where they do occur, they are not at four-way intersections. This has spillover effect for other community facilities such as Anderson Elementary School where barrier are being developed instead of providing connections for the west side of Converse Avenue for access by cars, buses and pedestrians.

2 || Existing & Future Development - *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

Sound planning and urban design principles typically would include planning for the larger area rather than platting piecemeal segments. Platting a larger area provides an opportunity to provide a logical addition to the open space system that will have value and be maintainable.

As mentioned previously the City has invested in a framework for a transportation network system which would benefit future development and existing development. The current proposal degrades the investment made in the transportation network system.

3 || Subdivision Standards - *The division of land meets the purposes, intent, and all applicable standards in Article 4.*

Article 4, Subdivision Regulations provides standards for coordinating development across different

areas and over time. It addresses development patterns and includes planning, design, and engineering standards for systems that coordinate development across large areas, including open space, transportation, and utilities. It is most useful to anyone considering dividing land and public officials that review development applications in relation to long-range plans and impacts.

4.2 Community Facilities and Fees

This section of code addresses how the dedication of land occurs and how park fees impact the proposal. In addition to public streets the application proposes to dedicate a twenty foot strip of land Along Converse Avenue and a ten foot strip of land along Ogden Road. The applicant has not proposed to make any improvements to the land but for the City to develop and maintain the land as some sort of open space, specifically a “Green” open space as described in Table 4-16. This proposal does not meet any sort of criteria the City has for accepting dedication of public open space, this evaluation will be described in more detail later in the report. In any case accepting this dedication of land is not recommended.

In the absence of a reasonable dedication of park space, fee credits and reimbursements are not applicable in this case and a full Park Fee will be due pursuant to Article 4, Section 4.2.5.

The final plat will require payment of park fees as outlined below (subject to change). Enhancement Fees (PEA) for residential development are \$400 per dwelling unit due at the time of issuance of building permits.

Land Acquisition Fee (PAI)	\$350 x	7 acres	=	\$2,450
Infrastructure Fee (PAI)	\$350 x	7 acres	=	\$2,450
TOTAL DUE W/ PLAT				\$4,900

[revised 1/3/13]

4.3 Transportation Networks and Street Designs

This application precludes the development of an intersection on Converse. As shown on the network plan and previous sketch plans for the area no connection to Converse Avenue is planned for the build out of the area east of Converse. This proposal underutilizes the community’s investments in Converse Avenue and Anderson Elementary School. This proposal is not consistent with the Master Transportation Plan because the application precludes a four-way intersection on Converse midway between Storey Boulevard and Dell Range Boulevard.

From a regulatory standpoint the application has proposed a non compliant block layout (ref. 4.3.3). In particular the application is proposing a block that is over 1.6 miles around and encompasses over 40 acres (Figure 4).

There are limitations to a transportation network in this area dictated by the previous development.

However, options do exist to meet subdivision requirements moving forward (Figure 5). By developing the street connection from Converse Avenue to Ogden Road a smaller block is created. Another component may include connecting Pattison Avenue to Converse Avenues. Another option, accommodated by code, is to develop the 3 acre detention ponds as a functional open space and allow an exception for a larger block.

In Figure 5 a block using Patteson is reflected in the southern blue line. The primary connection street from Converse Avenue to Ogden Road would also be consistent with the Master Transportation Plan and is represented by the northerly blue line. The green area in figure 5 represents developing the detention pond as a usable open space, which is another option to consider for allowing large blocks (ref. Section 4.3.3c1). The open space exception was developed to accommodate neighborhoods such as The Pointe, where large blocks are developed but include open spaces, trail corridor and pedestrian connections.

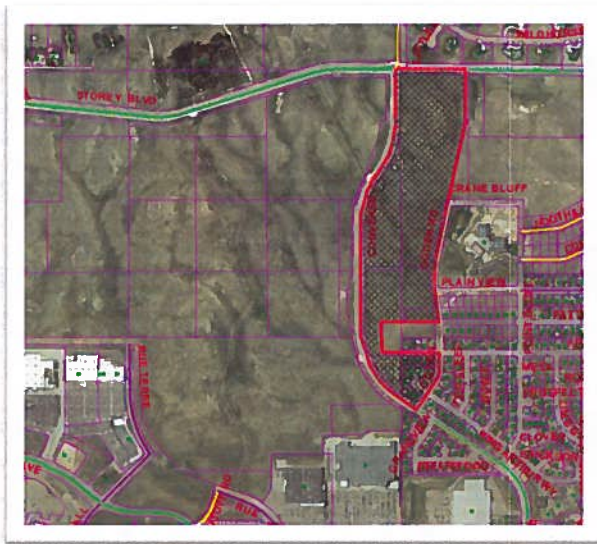


Figure 4: Proposed Block Layout



Figure 5: Alternative Block layout

4

Section 4.4.3 requires open space in the amount of eight percent of the gross development area or 750 square feet per dwelling unit. Open space may be provided with a variety of open space types and flexibility through a variety of means.

The application claims an open space exception (4.4.2b1) for the 1.62 acre storm water detention pond #400 located south of and adjacent to the development. The applicant also proposes using Pond #400 as an open space exception for the Scenic Development 300+ unit apartment complex west of Converse Avenue.

Claiming this exception is not allowed under City standards because the detention pond is not designed for park or recreational use. (Note: On the preliminary plat map submitted by the applicant the detention pond lot is erroneously called out as a public park). The intention of the exception to the open space requirement is that if new development is developed within a ¼ mile of a legitimate park facility then developing more open space is not needed.

In the absence of an exception, the development is required to provide a minimum of 21,000 square feet of open space at 750 square feet per dwelling unit. The application proposes 19,165 square feet of open space which the application describes as a “Green” open space. The open space shown on the map

is a 20' x 830' strip along Converse Avenue and a 10' x 240' strip along Ogden Road. The criteria for a "Green" open space is described in Table 4-16 and the locational criteria is describe in Article 4, Section 4.4.5. Generally the areas which are proposed as open space are too small and not located in a central location within the subdivision. There does not appear to be a theme or purpose for the open space either on its own merit or in the context of a larger proposal. No other information was provided in terms of the design or purpose of this space other than it will be dedicated to the City for maintenance. Efforts to get additional information from the applicant were not successful.

The land owner has over 60 acres yet to be developed east of Converse Avenue. Developing 10 acre increments will not yield functional park or open space options. Generally developments which are ten acres in size are infill development. Infill refers to the development of an area which is generally surrounded by existing development and has limited options to provide any useful open space and still make a profitable development. This proposal is not infill development and platting the remaining 60 plus acres together would result in a logical allocation of open space which is likely to result in three to five acres of open space as described in Table 4-16.

4 || Phasing Amenities, Facilities - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

No phasing has been proposed for the subdivision. In the absence of any approved phasing plan the expectation is that full improvements are in place and accepted by the City prior to any certificates of occupancy.

5 || Studies and Reports - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

Conceptual Stormwater Management Plan, 11/29/12

A Conceptual Stormwater Management Plan dated 11/29/12 was submitted with the preliminary plat application. This plan discusses how the existing stormwater detention pond located to the south (pond #400) and owned and maintained by the City will be used to serve this subdivision. It also proposes that a portion of the subdivision be served by an adjacent stormwater detention pond developed in the County the summer of 2012 without City review. The pond and surrounding area needs to be included in the plat if the City is to evaluate the effect of this system and its contribution to the health safety and welfare of residents. (see section 3.3 of the plan submitted by the applicant.

The application also requesting that a small stormwater detention pond platted in 2010 (Pond #300), a block to the east, be allowed to be vacated and turned into a buildable lot reasoning that the detention pond built in the County can handle the stormwater. Using detention facilities developed outside City jurisdiction and review or approval, to provide for the health safety and welfare of residents is problematic. Additional discussion is in this report under the drainage engineering comments.

Transportation Worksheet and Request for Study waiver

A Transportation worksheet was submitted as required and the applicant requested a waiver of a traffic study. The traffic generated by this subdivision is under the threshold to require a study. This has been the case for the last two recently platted filings (the 7th in 2008 and the 8th in 2010), however cumulatively the three plats total nearly 100 developable lots over 29 acres. When a developer proposes a 100 lot subdivision the City wants to review a study. The traffic Engineer has asked that a Study be approved prior to final plat submittal.

6 || Zoning - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

This plat includes a 10-foot-wide strip of five lots, between Block 14 of this subdivision and the existing lots of Block 10, Century West Fourth Filing. The preliminary plat states these lots will be conveyed to the owners of the adjacent lots. This has the potential for problems including the possibility of one or more of those owners not wanting to accept the property. Additionally, as separate lots, the owners would have little incentive to pay the property taxes on them, knowing that they cannot be built upon by any subsequent owner. Likewise, maintenance and code enforcement could be problematic.

These lots are all over 9,000 square feet and are considered Type DD5 for the purposes of setback and related requirements.

7 || Adjacent Development - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

The current proposal which does not include right of way along the north boundary will create undue influence on the property to the north. This change removes a connection to the existing neighborhood and the expectation of a four-way intersection at this location.

8 || Health Safety and Welfare - *The application is not harmful to the public health, safety, and welfare.*

The City's zoning codes, regulations plans and policies are adopted by a public process under the umbrella of protecting the health safety and welfare reflecting the community's goals. The previous discussions indicate a number of unresolved questions with this application that have the potential to adversely affect the health safety and welfare as adopted by the community.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

City Surveyor: Jack Studley

1. The azimuths and distances provided in the LAND DESCRIPTION do not match those found on the map drawing. Therefore I cannot determine which set of figures should be used for properly identifying these boundaries. This correction is required prior to approval.
2. In the LAND DESCRIPTION involving Section 20, the degree symbol appears to not be properly turned on. This correction is required.
3. APACHE STREET and 60' R/W needs to be added to identify the street.

Drainage Engineering: Michael Vinson

1. Would like to see the existing stormwater detention pond between Ogden Road and this 9th Filing (Ogden Road Pond) also be included in the plat. For the pond area, the plat should have language to the effect:

Granting the City, its successors and assigns, the right and privilege to construct, reconstruct, inspect, alter, improve, remove, repair and maintain the drainage infrastructure, both above and below ground, including all rights and privileges necessary or convenient for the full enjoyment and use thereof for the above-mentioned purposes.

The owner shall maintain the drainage facilities in good working order. "Good working order" is defined as the drainage system operating as designed and constructed in accordance with the as-built construction drawings on file with the City; including but not limited to, maintaining the structures and land surface free of debris, impoundments and/or alterations to the flow of drainage.

Upon failure to properly maintain a drainage facility in good working order as stated above, the City is hereby given the right to maintain the property in good working order, effective after five (5) days written notice to the owner. After notice, should the owner fail to properly maintain the easement in good working order, the City is hereby granted the immediate right of entry to perform all necessary repairs, reconstruction, and/or maintenance to restore the drainage improvements, slopes and easement within the property to its proper working order.

Any and all costs for repair, reconstruction, and/or maintenance made by the City, shall be paid by the the owner, including an additional administrative cost assessed by the City to the owner. Failure by the owner to pay City costs incurred, including its administrative costs within a reasonable period of time, not to exceed thirty (30) days, shall cause the costs to be assessed against the owner's remaining property as a lien pursuant to City Code of Ordinances.

2. The outlet from the Ogden Road Pond discharges onto Ogden Road. The Conceptual Stormwater Management Plan report proposes this continue. We want a low-flow outlet to connect this pond to the existing pond south of this 9th Filing, adjacent to Converse Avenue.

3. The Conceptual Stormwater Management Plan report also addresses the elimination of an existing pond constructed with The Bluffs 8th Filing on Lot 10 Block 11 (Lot 10 Pond). The justification for the elimination of this pond is over-detention at the Ogden Road Pond.

The Lot 10 Pond serves The Bluffs 8th Filing, and this drainage is conveyed along Point Bluff. The Ogden Road Pond provides no benefit to Point Bluff.

Alternatively, the City would like to see the existing pond at the northwest corner of Plain View Road and Point Bluff (School Pond) modified as a condition for the elimination of the Lot 10 Pond. Modification of the School Pond may include adding inlets on both Plain View Road and Point Bluff conveying stormwater into the School Pond, as well as modification to the outlet structure.

Engineering: Nathan Beauheim

1. Please label the east-west street on the south edge of the development as an extension of "Apache Street" with an appropriate right-of-way width called out.
2. The parcel to the south ("Storey Blvd Extension Block 5 Lot 1) is improperly labeled as a public park. It is not. It is a detention pond that was constructed with the Storey Blvd. extension. In fact, the developer (in accordance with paragraph 22 of the Storey Blvd. Master Agreement (City Contract #4475)) is proposing to use this detention pond for his water. This detention pond was also improperly counted in the open space worksheet without any discussion of the improvements required by Sections 4.4.3.b.3.a-c.
3. When the City platted the land to the north of this development (Block 4, Lot 1 Storey Boulevard Extension), 40' of right-of-way was dedicated for a future extension of Plain View Rd. as shown in Plan Cheyenne. In conjunction with this plat, the developer shall dedicate the other half of this right-of-way and construct the road as a collector.

Traffic Engineering: Mark Escobedo

1. A Transportation Worksheet to determine TIA/TIS requirements was provided as required (ref. Article 3, Section 3.1.1.c., UDC). The request for TIS Waiver was initialed K.H. The number of trips generated is less than the threshold amount which triggers a TIA or TIS, however this is the 9th filing of the same subdivision. The proposed development is in the vicinity of a street or intersection with a history of safety and/or accident problems and the scale of the overall proposed development is likely to cause less than acceptable levels of service on adjacent public streets and intersections. The waiver request is hereby denied. A Transportation Impact Study (TIS) is required. The TIS shall be submitted with the Final Plat submission, with no action or recommendations on the Final Plat until the TIS is approved.
2. All new streets shall align with any existing or proposed streets on adjacent property and shall continue and extend arterial, collector, and local streets within the proposed subdivision externally to the parcel boundary as identified in the adopted Transportation Master Plan and the overall Transportation Network Plan (ref. article 4, Section 4.3.3.f., UDC). No connection meeting this requirement is shown on the Preliminary Plat. No rights-of way are being dedicated and provided to facilitate extension of Plainview Road.
3. When two tangents of local streets (25 mph) are connected by a horizontal curve with a center radius less than what would be required for the design speed, a knuckle should be utilized (ref. article 4, Section 4.3.4.c., UDC).
4. The Sight Distance Triangle at controlled intersections and access driveways shall maintain adequate, unobstructed sight distance in both directions from all accesses (ref. Article 4, Section 4.3.5.c., UDC). This triangular space is to be kept free from all obstructions to vision, including plant materials and vegetation, between the heights of 2.5 and 12 feet above the street grades.
5. Curb ramps meeting ADA Accessibility Standards shall provide a direct, non-diverted approach along the block, into the pedestrian crossing (ref. Article 4, Section 4.3.5.e, UDC).
6. The builder and/or the developer are responsible for the construction of sidewalks (ref. Article 4, Section 4.5.2.b, UDC).
7. All mandatory signage and striping (ref. Article 4, Section 4.5.2.d, UDC) are to be shown in the project civil improvement drawings in conformity with the City of Cheyenne Standards and the Manual on Uniform Traffic Control Devices (MUTCD).
8. As part of the project, the applicant shall provide in sufficient detail the project's proposal to provide pedestrian and bicycle connections within the site to the local offsite pedestrian and bicycle destinations in close proximity to the project (Appendix E, UDC). This assessment shall describe the directness of the route to and from various parts of the project, the continuity of the

pedestrian and bicycle system to reach these destinations and the design elements to assure safe access.

LCSD #1: Chris Hout

This development site falls within the East Triad -- student's home attendance boundaries are East High School, Carey Junior High School and Anderson Elementary Schools.

The current attendance for these schools is as follows:

Anderson Elementary - at capacity with no space available.

Carey Junior High - below capacity with space available in both grades.

East High -- at or above capacity with no space available.

Metro Planning Office (MPO): Nancy Olson

1. To be in compliance with the intent of the Master Transportation Plan, Plainview Road needs to be platted as a collector street and connect to Converse Ave. Thirty feet of additional ROW needs to be platted on the north edge of this plat. Lots can be shifted and or altered to make this change as an extension of Plainview.
2. Provide a direct pedestrian/bicycle connection to Converse Avenue.

Optimum (formerly Bresnan): Kurt Quinlivan

Optimum will require utility easement in any location the developer would like cable television lines to be ran and pedestals to be placed.

Parks and Recreation: Teresa Moore

1. The plat does not indicate proposed ownership and management of the lots "dedicated" for open space pursuant to Section 4.4.6 of the UDC. If the intent is for dedication to the City of Cheyenne for ownership, and subsequently the Parks and Recreation Department for management, the Parks and Recreation Department has no interest in the proposed open space parcels. The parcels do not meet the intent of the Open Space Systems, Section 4.4.1, nor does it appear that the proposed open space lot area meets the requirement per Section 4.4.3, table 4-15. The lot sizes do not meet the description and size requirements to be classified a "park" (Section 4.4.4) as called out on the plat. Without clarity about the type of proposed open space, it cannot be concluded if the lots meet the location criteria prescribed in Section 4.4.5.
2. The Parks and Recreation Masterplan advocates for a level of service of a neighborhood park of 5+ acres to provide recreation opportunities within walking distance (defined as being with one-half mile) of all residential areas. This area falls short of providing this level of service.
3. Remove the designation of "Public Park" from Lot 1, Block 5, Storey Boulevard Extension.
4. Provide direct pedestrian connection to Converse.

Board of Public Utilities: Linda Gunter

On July 14, 2003 the Cole Family (Landowners) entered into a Memorandum of Agreement with the City of Cheyenne and the Cheyenne Board of Public Utilities. Contract #4475 Master Agreement for Storey Blvd.-Converse Ave. Extension, Section 17 & 20, T14N R66W, 6th. PM, Laramie County, Wyoming for the construction of the Storey Blvd. and Converse Ave. Extension. In Paragraph 14 of this Agreement, it speaks about reimbursement for the water and sewer utilities that were constructed along Storey Blvd. and the Converse Ave. Paragraph 14 also states that Landowners agreed to reimburse the City for the portion of the water and sewer main improvements at the time of and in conjunction with development action by the Landowners. The portion of water and sewer facilities improvement to be reimbursed at the time of development will be based on a reimbursement schedule in this document. All reimbursements for the water and sewer will be based on a maximum size of eight inches.

Please see Table - 2 Converse Ave. for the Sewer main reimbursement along the property being developed at The Bluff 9th Filing.

- Station 208+75 thru Station 217+17,
1,014 feet of 8" Sanitary Sewer Main at 50% Reimbursement at \$18.90 LF (50% = \$9.45 LF)
 $1,014' \times \$9.45 \text{ LF} = \$9,582.30 / 2 = \mathbf{\$4,791.15}$
- Station 208+75 thru 214+75
Four Manholes at 100% Reimbursement at \$1,461.20 each = **\$5,844.80**

Sewer Main Reimbursement = \$4,791.15 + \$5,844.80 = \$10,635.95

Please see Table - 4 Converse Ave. for the Water main reimbursement along the property being developed at The Bluff 9th Filing.

- Station 208+87 thru 215+25
640' feet of 8" Water main at 100% Reimbursement at \$20.30 LF
 $640' \times \$20.30 \text{ LF} = \$12,992.00 / 2 = \mathbf{\$6,496.00}$
- Station 208+87 Extension to LT
98' feet of 8" Water main at 100% Reimbursement at \$20.30 LF
 $98' \times \$20.30 \text{ LF} = \mathbf{\$1,989.40}$
One, 8" Tee at **\$257.00**
One, 8" Valve at **\$498.00**
One, Cap at **\$82.00**
- Station 215+25 Extension to RT

30' feet of 8" Water main at 100% Reimbursement at \$20.30 LF
 $30' \times \$20.30 \text{ LF} = \mathbf{\$609.00}$
One, 8" Tee at **\$257.00**
One, 8" Valve at **\$498.00**
One, Cap at **\$82.00**

Water Main Reimbursement = \$6,496.00 + \$1,989.40 + \$257.00 + \$498.00 + \$82.00
+ \$609.00 + \$257.00 + \$498.00 + \$82.00 = \$10,768.41

The total Sewer and Water Reimbursement to the Cheyenne Board of Public Utilities for this development The Bluffs 9th Filing is $\$10,635.95 + \$10,768.40 = \$21,404.35 \times (\text{CPI-U}) \text{ Index}$.

The unit price based on the Consumers Price Index. Annual inflation will be base on the Consumers Price Index and all Urban Consumers (CPI-U) Index. The base month CPI-U index in August 2003 was 184.60, and in October 2012, it was 231.31 = **1.2531**

The total Sewer and Water Reimbursement to the Cheyenne Board of Public Utilities for this development The Bluffs 9th Filing is

Sewer \$10,635.95 + Water 10,768.40 = \$21,404.35 x 1.2531 = \$26,821.7

A Wyoming Professional Engineer will need to submit proposed site plans with all utilities and overall projected design, plans and profiles to the Board of Public Utilities. After BOPU's review and signature of approval, the design engineer will need to send the plans to the (D.E.Q.) for approval and a permit to construct. When the D.E.Q. permit is issued, City's Engineer's Office and Cheyenne Fire Department have reviewed and signatures of approval are on the cover sheet. Then the Agent/Owner may employ a licensed contractor to install the utilities, apply for all applications for water/sewer tap permits from the BOPU, and request a preconstruction meeting with all parties involved prior to construction.

All water and sanitary sewer utilities need to be designed and constructed in accordance with the latest City of Cheyenne and Board of Public Utilities Construction Specifications Standards and Standard Drawings and the latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming.

Urban Planning: Jim Flesher

1. Map requires names and addresses of the owners of all abutting property and property immediately across adjacent streets.
2. "United" misspelled.
3. Change date to 2013.

Reviewing Agencies with No Comment: CenturyLink, GIS, Environmental Health, Fire

Reviewing Agencies Not Responding: County Clerk, County Assessor, Police, CLFP

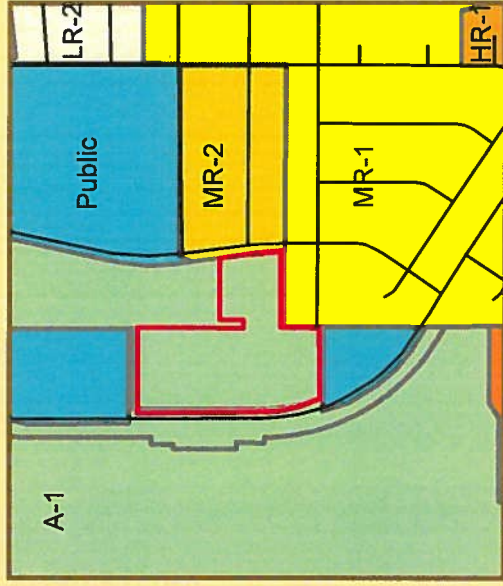
Other Comments Received: None

Encl: Preliminary Plat Map
Aerial Photo Exhibit

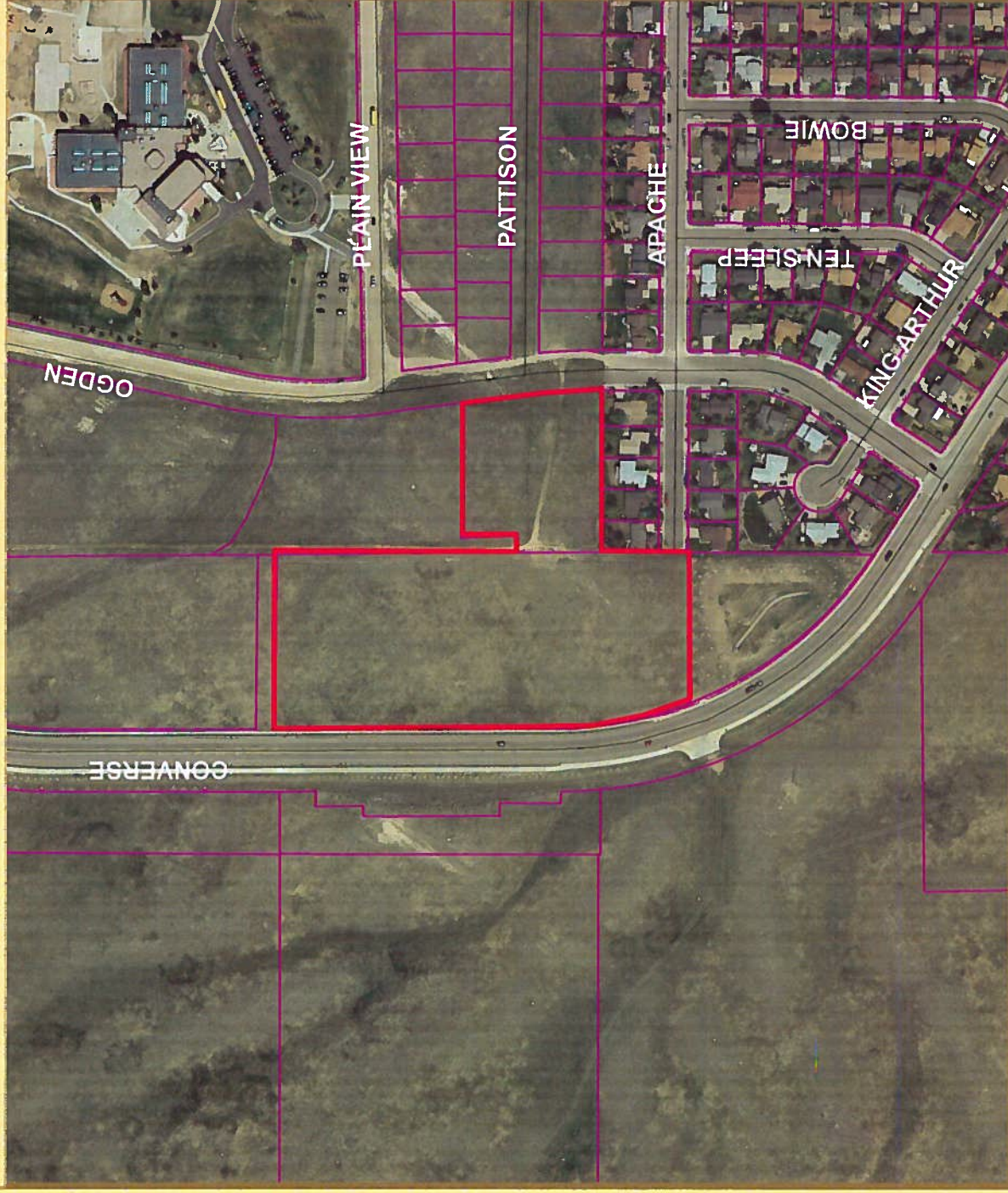
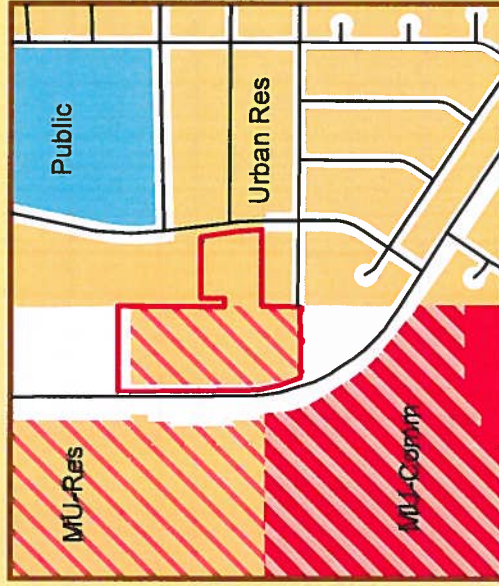
cc: Owner
Agent/Applicant
File

Bluffs 9th Filing Preliminary Plat - 1,500' North of Converse & Ogden

Zone Districts



Future Land Use Map



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS includes its sovereign and governmental immunity in allowing access to or use of this data.

2010 Aerial

1 in = 333 ft



Ownership

PORTION OF E1/2E1/2
SECTION 20 & PORTION OF
SW1/4SW1/4NW1/4 SECTION 21



